



LAW COMMISSION (AMENDMENT) ORDINANCE, 2002

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Contents

	PREAMBLE
1	SHORT TITLE AND COMMENCEMENT
2	AMENDMENT OF LONG TITLE, PREAMBLE AND SHORT TITLE, ORDINANCE XIV OF 1979
3	AMENDMENT OF SECTION 2, ORDINANCE XIV OF 1979
4	AMENDMENT OF SECTION 3, ORDINANCE XIV OF 1979
5	AMENDMENT OF SECTION 6, ORDINANCE XIV OF 1979
6	INSERTION OF NEW SECTIONS, ORDINANCE XIV OF 1979
6- A	FUND
6 B	EXPENDITURE TO BE CHARGED THE FUND
6 C	CONSTITUTION OF COMMITTEES
6 D	REPORTS

LAW COMMISSION (AMENDMENT) ORDINANCE, 2002

ORDINANCE LXX OF 2002

An Ordinance to amend the Law Commission Ordinance, 1979

WHEREAS it is expedient further to amend the Law Commission Ordinance, 1979 (XIV of 1979), for the purposes hereinafter appearing:

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the provisional Constitution Order the No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999 and in exercise of all powers enabling him in that behalf, the of the Islamic Republic of Pakistan is pleased to make and President promulgate the following Ordinance:--

1. Short title and commencement.-(1) This Ordinance may be called the Law Commission (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of long title, preamble and short title, Ordinance XIV of 1979. In the Law Commission Ordinance, 1979 (XIV of 1979) hereinafter referred to as the said Ordinance, in the long title, preamble and short title, for the words "Law Commission" the words "Law and Justice Commission of Pakistan" shall be substituted.

3. Amendment of section 2, Ordinance XIV of 1979. In the said Ordinance, in section 2, in clause (b), the word "and" occurring at the end shall be omitted and the existing clause (c) shall be renumbered as clause (c)) and before clause (d) renumbered as aforesaid, the following new clause shall be inserted, namely:-

"(c) "Fund" means Access to Justice Development Fund established under section 6-Aand".

4. Amendment of section 3, Ordinance XIV of 1979. In the said Ordinance, in section 3, for subsection (1), the following shall be substituted namely:-

"(1) There shall be a Law and Justice Commission of Pakistan consisting of-

- (a) the Chief Justice of Pakistan who shall be the Chairman, ex officio.
- (b) the Chief Justice of the Federal Shariat Court, Member, ex officio;
- (c) the Chief Justices of the High Court of Balochistan, High Court of Sindh, Lahore High Court and Peshawar High Court, Members, ex officio.
- (d) Attorney-General for Pakistan. Member, ex-officio;
- (e) the Secretary, Ministry of Law, Justice and Human Rights, Member, ex-officio.
- (f) Chairperson for Commission on Women Status, Member, ex-officio;
- (g) four members, one from each Province, to be appointed by the Federal Government on the recommendation of the Chairman, from amongst eminent lawyers and persons of repute and integrity from civil society.

(1A) in addition to the members referred to in subsection (1), the Chairman may, in his discretion, appoint a suitable person or persons as member or members for a specified period to perform specified function."

5. Amendment of section 6, Ordinance XIV of 1979.--In the said Ordinance, in section 6, the existing subsections (2) and (3) shall be renumbered as sub-sections (4) and (5) and before subsection (4) renumbered as aforesaid, the following new subsections shall be, inserted, namely:--

"(2) The Commission shall take appropriate measures for-

- (a) developing and augmenting human resources for efficient Court administration and case management;
- (b) coordination of judiciary and executive; and
- (c) preparing schemes for access to justice, legal aid and protection of human rights.

(3) The Commission shall administer and manage the Access to Justice Development Fund."

6. Insertion of new sections, Ordinance XIV of 1979.--In the said Ordinance, after section 6, amended as aforesaid, the following new sections shall be inserted, namely:-

"6-A. Fund.-(1) There shall be established for the purposes of this Ordinance a fund to be called the Access to Justice Development Fund.

(2) The Fund shall consist of-

- (a) an endowment grant of initial amount equivalent to US \$24 million by the Federal Government in instalments:
- (b) other grants and donations made by the Federal Government, Provincial Governments or a Local Government;
- (c) donations and contributions made by the individuals or institutions; and
- (d) sums raised by the Commission:

6-B. Expenditure to be charged the Fund. The annual income generated by investment of endowment grant finder clause (a) of sub-section (2) of section 6-A shall be utilized for the purposes and to the extent provided as hereunder:

- (a) 60.3% shall be allocated to the provinces on population basis to be called Provincial Judicial Development Fund for improving the capacity and performance of the subordinate Courts and providing amenities and facilities to Courts and litigants, as may be determined by the respective High Court(s);
- (b) 10% shall be set aside for special projects in the under developed Provinces and regions;
- (c) not more than 4.5% on Legal and Judicial Research;
- (d) not more than 4.5% on the activities of the Federal Judicial Academy not covered by its budgetary allocation;
- (e) not more than minimum of 13.5% with a cap of 20% for the legal empowerment of the poor and underprivileged persons for provision of legal aid or assistance to have access to justice, in accordance with the criteria to be laid by the Commission;
- (f) not more than minimum of 4.5% with a cap of 10% to be spent on innovations in or promotion of legal education;
- (g) 2.7% shall be charged by the Commission for management of the Fund:

Provided that an amount allocated under clauses (a) to (g) if not spent for any category shall be carried forward for the same purposes for the next two years;

- (h) all other fund other than provided in clause (a) of subsection (2) of section 6-A and the proceeds thereof, shall be utilized by the Commission for discharging its duties and functions under this Ordinance.
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6-C. Constitution of Committees. The Commission may constitute committees consisting of one or more of its members, as it thinks fit, and may refer to them any matter relevant to the functions of the Commission for consideration and report: .

6-D. Reports. The Commission shall publish an annual report of its activities and such other periodic or special reports requiring legislative or implementation effect as it may consider necessary. The Commission shall submit the reports to the President of Pakistan."
